

25AVCV00181 25AVCV00181

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-07-30

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Case Number: 25AVCV00181 Hearing Date: July 30, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

ELYCE BENFORD,

Plaintiff,

v.

NISSAN NORTH AMERICA, INC.,

Defendant.

Case Number 25AVCV00181

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 30, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a Song-Beverly Action arising from Plaintiff Elyce Benford's (Plaintiff) purchase of a vehicle from and breach of warranty by Defendant Nissan North America, Inc. (Defendant).

On February 11, 2025, Plaintiff filed a complaint against Defendant, asserting causes of action for (1) violation of subdivision (d) of Civil Code section 1793.2, (2) violation of subdivision (b) of Civil Code section 1793.2, (3) violation of subdivision (a)(3) of Civil Code section 1793.2, (4) breach of the implied warranty of merchantability, and (5) fraudulent concealment.

On April 23, 2025, Defendant filed an answer.

On June 10, 2026, Plaintiff filed a notice of change of handling attorney, stating Tionna Carvalho (Carvalho) was no longer Plaintiff's handling attorney, and that George Hill (Hill) of the same firm, Strategic Legal Practices, APC (SLP) is now the handling attorney for the matter.

On June 30, 2026, SLP filed the present motion to be relieved as counsel.

No opposition has been filed.

II. Legal Standard

Standard for Motion to be Relieved as Counsel – The Court has discretion to permit an attorney to withdraw from representation, and such a motion should be granted if there is no undue prejudice to the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

California Rules of Court, rule 3.1362 prescribes the following requirements of a movant seeking to be relieved as counsel: (1) The notice of motion and motion must be directed to the client using form MC-051 ("Notice of Motion and Motion to Be Relieved as Counsel-Civil"); (2) The motion must be accompanied by a declaration using form MC-052 ("Declaration in Support of Attorney's Motion to Be Relieved as Counsel-Civil") and "must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)."; (3) A proposed order must be lodged with the court along with the moving papers and must use form MC-053 ("Order Granting Attorney's Motion to Be Relieved as Counsel-Civil") and "must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order."; (4) "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case" either by personal service, electronic service, or by mail. (Cal. Rules of Court, rule 3.1362(a) – (e).)

"If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either: (A) the service address is the current residence or business address of the client; or (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved." (Cal. Rules of Court, rule 3.1362(d)(1).) "[C]urrent' means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned...is not, by itself, sufficient to demonstrate that the address is current." (Id at rule 3.1362(d).)

III. Discussion

Application – SLP moves to be relieved as counsel for Plaintiff.

SLP has satisfied the statutory and procedural requirements and provided the required MC-051, MC-052, AND MC-053 forms. The MC-051 is directed to Plaintiff, and the MC-052 form states the moving papers were mailed to Plaintiff at her last known residential address which was confirmed by mail with return receipt requested within 30 days preceding the filing of this motion, and emailed to Plaintiff. The MC-052 specifies all upcoming hearing and trial dates. SLP also declares on the MC-052 Declaration that there has been a complete breakdown in the attorney-client relationship. SLP declares that since April 15, 2026, SLP has made numerous attempts to communicate with Plaintiff by telephone and email regarding key case updates, and has not received any response. SLP states in then sent Plaintiff a comprehensive letter on June 2, 2026 demanding her immediate response, and no response was provided.

The Court finds sufficient good cause to grant the motion to be relieved. The Court finds no prejudice to Plaintiff, as trial has been continued to October 23, 2026, and she has roughly three months to find new counsel for ongoing settlement discussions and trial.

SLP's motion to be relieved as counsel is GRANTED.

IV. Conclusion

Plaintiff's counsel Strategic Legal Practices, APC's Motion to Be Relieved as Counsel is GRANTED.